

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Spencer Migotsky	Team: Squad #01	CCRB Case #: 201504399	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 05/18/2015 6:30 PM	Location of Incident: § 87(2)(b) 49th Precinct stationhouse		18 Mo. SOL 11/18/2016		Precinct: 49
Date/Time CV Reported Thu, 05/21/2015 8:55 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/01/2015 12:53 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Urena	26392	948434	049 PCT
2. POM Eddie Rios	27268	948412	049 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Tomas Medina	03240	935299	049 PCT
2. SGT Juan Diaz	02075	936486	049 PCT
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
A . POM Eddie Rios	Discourtesy: PO Eddie Rios spoke rudely to § 87(2)(b) at § 87(2)(b)	A . Unsubstantiated
B . POM Michael Urena	Discourtesy: PO Michael Urena spoke rudely to § 87(2)(b) at § 87(2)(b)	B . Unsubstantiated
C . POM Eddie Rios	Discourtesy: PO Eddie Rios spoke rudely to § 87(2)(b) and § 87(2)(b) at the 49th Precinct stationhouse.	C . Unsubstantiated
D . An officer	Force: An officer used physical force against § 87(2)(b) at the 49th Precinct stationhouse.	D . Officer(s) Unidentified
E . An officer	Discourtesy: An officer spoke rudely to § 87(2)(b) at the 49th Precinct stationhouse.	E . Officer(s) Unidentified
F . An officer	Abuse: An officer threatened to arrest § 87(2)(b) at the 49th Precinct stationhouse.	F . Officer(s) Unidentified

Case Summary

On May 18, 2015 at approximately 6:30 pm, § 87(2)(b) called the police to respond to his building at § 87(2)(b) because of a physical dispute between him and another tenant, § 87(2)(b) a former NYPD officer. PO Michael Urena and PO Eddie Rios, both of the 49th Precinct, arrived and took a complaint from § 87(2)(b) but did not take a report from § 87(2)(b). § 87(2)(b) approached PO Rios about making a report but PO Rios said “shut up, you shouldn’t be here” and “you should fucking know better” (**Allegation A**). § 87(2)(b) repeated that he wanted to make a report and PO Urena said “I’m not making a fucking report, you should fucking know better” (**Allegation B**). § 87(2)(b) replied “who the hell are you talking to like this” and PO Urena replied “fuck you, I’m not making a fucking report” and told § 87(2)(b) to “get the fuck away from the car” (also **Allegation B**). The officers then left.

§ 87(2)(b) went to the 49th Precinct stationhouse at about 7:30 pm the same evening and told Sgt. Juan Diaz about the incident at his building. He asked Sgt. Diaz if PO Rios or PO Urena had any connection to § 87(2)(b) and Sgt. Diaz said he did not know. § 87(2)(b) told Sgt. Diaz that he would go back to his home to call 911 and make a report about his interaction with PO Urena and PO Rios. When § 87(2)(b) went back to his house, he called 911 for a supervisor to come take a report but no one came. He called back at 9:00 pm but again no one responded. § 87(2)(g)

At about 11:25 pm, § 87(2)(b) went back to the 49th Precinct stationhouse with his wife, § 87(2)(b) to speak with a supervisor. § 87(2)(b) saw Sgt. Diaz and spoke with Sgt. Tomas Medina as well. As § 87(2)(b) spoke with them, PO Rios happened upon § 87(2)(b) and § 87(2)(b) and said “get the fuck out of my stationhouse, you fucking bitches, you and your wife” (**Allegation C**). § 87(2)(b) replied “who the fuck are you to talk to me like that?” Officers from the midnight shift then converged on § 87(2)(b) and one of them pushed § 87(2)(b) by pressing his chest against him (**Allegation D**). No officer told § 87(2)(b) to leave the stationhouse. While § 87(2)(b) was being pushed out, the officer pushing him said “I’ll fucking lock him up, I don’t give a fuck if he’s a cop” (**Allegation E and Allegation F**). § 87(2)(b) backpedaled out of the stationhouse and told the officers not to put their hands on him. Once he was outside of the stationhouse, § 87(2)(b) told Sgt. Medina that he was going to make a CCRB complaint.

This incident was not captured on video or audio.

Mediation, Civil and Criminal Histories

On June 9, 2015, mediation was offered to and rejected by § 87(2)(b). During his interview, mediation was offered to § 87(2)(b) and his wife again and they said that they would think about it. On June 25, 2015, § 87(2)(b) was called and he said that he did not want to mediate. § 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
A notice of claim was returned as negative (Board Review 14).

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) or § 87(2)(b) (Board Review 01 and 02).

- PO Rios has been a member of the NYPD for 6 years § 87(2)(b) § 87(2)(g)
- PO Urena has been a member of the NYPD for 6 years and has 7 CCRB allegations over 3 previous cases. None of these complaints was substantiated. § 87(2)(g)

Finding and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) identified PO Urena and PO Rios by name. PO Urena and PO Rios identified themselves as the officers who responded to § 87(2)(b) on May 18, 2015 and interacted with § 87(2)(b). While § 87(2)(b) said that PO Urena was at the stationhouse signing out when he encountered him (Board Review 03), PO Rios identified himself as the officer who had an altercation at the stationhouse with § 87(2)(b) (Board Review 04). PO Urena stated that he did not have any interaction with § 87(2)(b) at the stationhouse (Board Review 05). Evidence that PO Rios was the officer who interacted with § 87(2)(b) at the stationhouse – and that PO Urena did not interact with him there – is further provided by the fact that PO Rios has an entry in his memo book at 11:35 pm on May 18, 2015, about a dispute with § 87(2)(b) at the stationhouse while PO Urena’s memo book entry at 11:35 simply says that his tour ended. PO Urena’s memo book did not document any interaction with § 87(2)(b) at the stationhouse (Board Review 06 and 07). Sgt. Diaz also stated that PO Rios was the officer § 87(2)(b) interacted with at the stationhouse (Board Review 08). § 87(2)(g)

§ 87(2)(b) stated that the officer who pushed him out of the stationhouse, threatened to arrest him, and cursed at him, was a 28-32 year old 5’10” 240 pound Hispanic male officer in uniform with light blond hair (Board Review 03). § 87(2)(b) specified that the officer’s action was more of a bump on the chest than a push and that the action was taken in response to the loud verbal exchange between him and PO Rios. According to § 87(2)(b) the subject officer of these allegations was a 6’0” Hispanic male with brownish hair and a fit build (Board Review 09). Because of the discrepancies in these descriptions we attempted to search for Hispanic male officers with uniformed assignments from tours 3 and 1 on May 18th and May 19th, 2015. There were 10 male Hispanic officers with uniformed assignments between those two tours. Their pictures and pedigrees were searched in EDMS which showed that 6 of the 10 officers had height, weight, and hair characteristics that could reasonably be said to fit the complainants’ descriptions. There was no mention of this incident in the command log and no paperwork would be expected because of the limited involvement of the officers at the stationhouse. None of the officers who were interviewed could identify the subject officer or additional officers more generally. § 87(2)(g)

Recommendations

Allegation A – PO Eddie Rios spoke rudely to § 87(2)(b) at § 87(2)(b):

Allegation B – PO Michael Urena spoke rudely to § 87(2)(b) at § 87(2)(b):

§ 87(2)(b) stated that PO Rios did not take a report from him but did take one from § 87(2)(b) and that when he went to PO Rios for an explanation, PO Rios said “shut up, you shouldn’t be here” and “you should fucking know better.” He also stated that PO Urena said “I’m not making a fucking report, you should fucking know better.” When § 87(2)(b) replied “who the hell are you talking to like this,” PO Urena replied “fuck you, I’m not making a fucking report” and told § 87(2)(b) to “get the fuck away from the car.” The officers then left (Board Review 03).

PO Rios and PO Urena both stated that when they originally approached § 87(2)(b) he said that nothing was wrong and only after they spoke to § 87(2)(b) and took a report from him did § 87(2)(b) demand that they take a report from him as well. The officers both said that they ignored § 87(2)(b)’s demands because he changed his story and was insinuating that he should receive special treatment because of his status as a retired member of service. Both officers denied making the alleged statements, stated that they did not hear the other officer say any of the alleged statements, and denied using any profanity whatsoever in dealing with § 87(2)(b) (Board Review 04 and 05).

Three individuals witnessed this portion of the incident: § 87(2)(b) a tenant in the building, § 87(2)(b), § 87(2)(b) tenant of the building, and § 87(2)(b) the security guard at the property. § 87(2)(b) was uncooperative. § 87(2)(b) stated that he did not see any interaction between any officers and any civilians, although he did witness § 87(2)(b) and § 87(2)(b) having a dispute (Board Review 10). § 87(2)(b) stated that he saw § 87(2)(b) push § 87(2)(b) on the back of the head and that when the police arrived on scene, they scolded § 87(2)(b). § 87(2)(b) believed that the officers might have told § 87(2)(b) “you should know better” and “I’m not making a report” but he did not know whether the word “fuck” was used in either of those statements. § 87(2)(b) did not hear the entirety of the conversation between § 87(2)(b) and the officers since they were about 15 steps down from where § 87(2)(b) was standing. § 87(2)(b) did not recall hearing any profanity used by the officers, although he confirmed that they appeared to be frustrated with § 87(2)(b) (Board Review 11).

§ 87(2)(b) confirmed in a brief statement that he interacted with § 87(2)(b) and that the police were called. He also said that the officers did not curse at § 87(2)(b) (Board Review 12). § 87(2)(g)

§ 87(2)(g)
§ 87(2)(b), it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation C – PO Eddie Rios spoke rudely to § 87(2)(b) and § 87(2)(b) at the 49th Precinct stationhouse.

§ 87(2)(b) stated he went to the 49th Precinct stationhouse with § 87(2)(b) to make a complaint about the officers who responded to his building. At the stationhouse, § 87(2)(b) spoke to Sgt. Diaz and Sgt. Medina. As he was speaking to them, § 87(2)(b) stated that he saw PO Urena in plainclothes and that PO Urena said “get the fuck out of my stationhouse, you fucking bitches, you and your wife” (Board Review 03). § 87(2)(b) also stated that PO Urena told them “get the fuck out of my stationhouse, you fucking bitches” when he happened upon them (Board Review 09).

§ 87(2)(g)

§ 87(2)(b) PO Urena stated that he ended his tour at about the time that § 87(2)(b) was at the stationhouse and that he was at the stationhouse too, but he denied having any interaction with § 87(2)(b) while he was there (Board Review 05). PO Rios stated that he explained what happened to Sgt. Diaz with § 87(2)(b) when he got back to the stationhouse. He also said that PO Urena was not present at that time. As PO Rios was leaving, he saw § 87(2)(b) and § 87(2)(b). According to PO Rios, when § 87(2)(b) saw him, he said “that’s the mother fucker, you don’t know how to do your job, you need to be retrained.” PO Rios replied “we’re done with the job, get out of here” twice. PO Rios denied that he said “get out of my fucking stationhouse, you fucking bitches” or that he used any profanity (Board Review 04).

Sgt. Diaz stated that § 87(2)(b) came to the 49th Precinct stationhouse to complain about the way officers handled an incident at his building. Sgt. Diaz went to a back room to retrieve the paperwork for him to file a complaint and when he returned, he saw § 87(2)(b) arguing with PO Rios. According to Sgt. Diaz, § 87(2)(b) and PO Rios were arguing loudly but he did not recall the exact words exchanged. Sgt. Diaz did not recall whether PO Rios said “get the fuck out of my stationhouse, you fucking bitches” or used any profanity (Board Review 08). Sgt. Medina stated that § 87(2)(b) came to the stationhouse to make a complaint and so Sgt. Medina went to the complaint room. While he was in the complaint room he heard § 87(2)(b) screaming. Sgt. Medina approached § 87(2)(b) and took him aside to calm him down. He got the impression that the officer that § 87(2)(b) screamed at was one of the officers who originally responded to his building. Sgt. Medina did not hear any officer say “get the fuck out of my stationhouse, you fucking bitches” or any other profanity (Board Review 13).

§ 87(2)(g)

it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D – An officer used physical force against § 87(2)(b) at the 49th Precinct stationhouse.

Allegation E –An officer spoke rudely to § 87(2)(b) at the 49th Precinct stationhouse.

Allegation F – An officer threatened to arrest § 87(2)(b) at the 49th Precinct stationhouse.

Although PO Rios, Sgt. Diaz, and Sgt. Medina were all present at the stationhouse when § 87(2)(b) was allegedly pushed out by an officer, none of them said that he was pushed out. All three officers said that § 87(2)(b) left the stationhouse of his own accord and that no officer

cursed at him, threatened to arrest him, or moved to arrest him. They all denied that physical force was used by anyone to escort § 87(2)(b) out of the stationhouse (Board Review 04, 08, 13). § 87(2)(g)

it is recommended that **Allegations D, E, and F** be closed as **officer unidentified**.

Squad: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date